



APPRAISAL GAP ADDENDUM

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If you do not understand this form, seek competent legal advice prior to signing.



This Addendum is part of the Agreement of Sale by and between

SELLER(S): _____

BUYER(S): _____

PROPERTY: _____

PURCHASE PRICE: _____

This Addendum modifies and supersedes any existing appraisal contingency in the Agreement of Sale.

The Agreement of Sale is contingent upon the Buyer (or Buyer's lender, if applicable) obtaining a written appraisal of the Property. Buyer agrees that if the Appraised Value of the Property is less than the agreed-upon Purchase Price, Buyer shall bring to settlement additional funds up to the amount of \$_____ above the Appraised Value ("Buyer's Additional Funds"), or such lesser amount as needed to cover the gap between the Appraised Value and the Purchase Price. In no event shall the sum of the Appraised Value and Buyer's Additional Funds exceed the Purchase Price.

If the Appraised Value of the Property plus Buyer's Additional Funds is less than the Purchase Price, Buyer shall deliver a copy of the appraisal to Seller within _____ days (or three (3) days if no date specified) after Buyer receives the appraisal. Seller shall have _____ days (or three (3) days if no date specified) from receipt to notify Buyer if the Seller agrees to reduce the Purchase price to equal the Appraised Value plus Buyer's Additional Funds.

If the Seller refuses to reduce the Purchase Price, fails to respond in writing to Buyer's request, or an agreement for a new Purchase Price is not mutually agreed upon in writing, then Buyer may notify Seller in writing, no later than two (2) days after the deadline for the Seller's response as specified above, of Buyer's intent to purchase the Property at the Seller's final offer or the Agreement of Sale shall be null and void. If the Agreement of Sale is cancelled as a result of this contingency, all parties agree to immediately execute the proper documentation to acknowledge termination of the Agreement of Sale. There shall then be no further obligation or liability of either party, Broker(s) or Designated Agent(s) and all deposit money shall be returned to Buyer in accordance with the terms of the Agreement of Sale provided Buyer is not otherwise in default.

Buyer affirms that they have adequate liquid funds available and, upon request, will provide documentation or lender approval to demonstrate the ability to bring Buyer's Additional Funds and settlement expenses to settlement in accordance with the terms of this Addendum.

The parties agree to amend the Agreement of Sale to reflect the revised Purchase Price and the Financing terms in accordance with the terms of this Addendum.

All other terms and conditions of the Agreement remain unchanged and in full force and effect.

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Seller _____ Date _____

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Seller _____ Date _____

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Buyer _____ Date _____

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Buyer _____ Date _____



AS-IS ADDENDUM WITH RIGHT OF INSPECTION(S)
FOR INFORMATIONAL PURPOSES ONLY



This form is only to be used if the below selected inspections in the Agreement of Sale are left blank, checked "no", or otherwise excluded.

This Addendum is part of the Agreement of Sale by and between

SELLER(S): _____

BUYER(S): _____

PROPERTY: _____

The parties hereto acknowledge and agree that this property is being sold in "AS IS" condition as of the date of this Agreement of Sale except as is otherwise agreed upon in the Agreement of Sale. The Seller makes no warranty, expressed or implied, as to the condition of the property or any equipment or system/component contained therein. Seller acknowledges that they have to the best of their knowledge completed a Sellers Disclosure of Real Property Condition Report which is made a part of this Agreement of Sale, or in the event a Sellers Disclosure of Real Property Condition Report was not completed because the transaction qualifies as exempt from the requirement of completing a Sellers Disclosure of Real Property Condition Report, the Seller has none the less disclosed all known latent or hidden defects relating to the property to the Buyer in writing prior to the signing of this addendum. Seller's failure to disclose to Buyer any latent or hidden defect known to Seller regarding the property or any condition known to Seller which may pose a health or safety risk to Buyer shall render the "AS IS" condition of this sale null and void with respect to such latent or hidden defect or condition which may pose a health or safety risk to Buyer.

DESPITE THE FACT THAT THE FOLLOWING SECTION(S) IN THE AGREEMENT OF SALE WAS LEFT BLANK, CHECKED "NO", OR OTHERWISE EXCLUDED, the Seller hereby agrees to grant access to the Buyer and permit Buyer at Buyer's expense to obtain an inspection of the following systems/components by _____ (or within fifteen (15) days of ratification/effective date of this Agreement if no date specified)

CHECK ALL THAT APPLY

- ☐ Home Inspection
- ☐ Wood Destroying Insect Inspection
- ☐ On-site Wastewater/Septic Inspection
- ☐ Well Water Inspection
- ☐ Radon Inspection
- ☐ Swimming Pool Inspection
- ☐ Other: _____

Seller shall make the Property accessible for those inspection(s) checked above and will have all utilities turned on for those particular systems/components at time of inspection. Neither Buyer, nor any agent or contractor(s) of Buyer, shall in any way excavate, penetrate or otherwise damage any part of the Property without the prior written consent of Seller, nor shall any furnishings, boxes, or personal property belonging to the Seller be moved or relocated unless absolutely necessary in connection with the inspection. Buyer and Seller shall have the right to be present during the inspection(s), and Buyer shall give Seller reasonable advance notice of the date and time of any inspection(s).

THE ABOVE CHECKED INSPECTION(S) PERFORMED BY THE BUYER SHALL BE DEEMED TO BE "FOR INFORMATIONAL PURPOSES ONLY" AND SOLELY FOR THE PURPOSE OF ASSISTING THE BUYER

WITH BETTER UNDERSTANDING THE CONDITION OF THE PROPERTY SO THAT THEY MAY BETTER PREPARE FOR ANY WORK/REPAIRS THEY MAY WISH TO PURSUE AFTER FINAL SETTLEMENT. THIS AGREEMENT OF SALE IS NOT CONTINGENT UPON THE COMPLETION OF ANY ABOVE CHECKED INSPECTION(S) AND THE BUYER MAY NOT USE ANY SUCH INSPECTION REPORTS AS GROUNDS TO REQUEST ANY REPAIR(S), TO TERMINATE THIS AGREEMENT OF SALE, OR TO NEGOTIATE ANY CHANGE IN THE SALES PRICE OR TERMS OF THIS AGREEMENT. INSPECTION REPORTS SHALL BE THE PROPERTY OF THE BUYER AND SHALL NOT BE SHARED WITH THE SELLER.

The parties understand that, even though this is an "AS IS" sale, the Seller is obligated by law to disclose all known defects of a material nature of which the Seller is aware. The parties do not intend by this Addendum to waive any provision of law requiring the Seller to furnish disclosure statements, nor do the parties intend to waive any provisions of local laws requiring inspections or reports.

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Seller	Date
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Seller	Date
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Buyer	Date
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Buyer	Date
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Broker/Agent

Date

Client



Buyer Client



Tenant Client

What is Bright MLS?

Bright runs the largest, most accurate, up-to-date database of properties for sale and rent in the area, creating an open, transparent market for information about available homes. Most websites and apps get their information from Bright's multiple listing service (MLS). For more information, go to

BrightMLS.com/Open.

How does Bright MLS work?

Impartial Cooperation Among Agents and Brokers: Bright supports an open, transparent market for property information by requiring subscribers (licensed agents and brokers) to cooperatively share information about all available properties and make them available to subscribers in the area on an impartial basis.

Open, Transparent Access to Information: You and your broker decide on the information, pictures, and price submitted to Bright for your home. Bright checks it for accuracy, enhances it with historical records, and shares it (for free) with 100,000+ brokers/agents and thousands of sites and apps. Bright charges you nothing; subscribers pay a flat subscription fee.

What do I need to know about broker fees? What your broker may earn, and what you may pay, must be agreed in a contract by the time you (seller/landlord) sign a listing agreement, or you (buyer/tenant) are taken on a home tour. ***Those amounts are not set by law, trade association, or Bright; they are fully negotiable.***

Subscribers must work impartially with their clients and other subscribers, in their client's best interest, regardless of any financial arrangement with another broker, which may not be communicated using Bright's system and must be disclosed in writing to their client.

A buyer/tenant may ask in a purchase offer for a seller/landlord to cover closing costs, including broker fees. If you are a seller/landlord, you may choose to agree to cover a buyer's closing costs or service provider fees (e.g., title, broker or lawyer fees) or provide other concessions.

Buyer/Tenant client initials to acknowledge understanding of the above

Broker/Agent

Date

Client



Buyer Client



Tenant Client

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Date

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Seller Client



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As the seller/landlord, how will my broker use Bright MLS to market my home?

- When will your broker allow potential buyers/renters to learn about the property?

Date

Property address

Subscribers must submit information to Bright about every property with an exclusive listing within two days of allowing any potential buyers or renters to learn about the property.

- How will your broker use Bright? (Check one applicable option)



2-A Active: Use Bright to share my home's information with the open market (Internet: Yes)

Bright will share the property's information with other subscribers and popular websites/apps. You and your broker still manage access to the home (use option 2-C if tours/showings/open houses are not yet available when information must be submitted to Bright).



2-B Active: Use Bright to share my home's information with real estate professionals in Bright's MLS only, and do not publicly market my home on the Internet (Internet: No)

Your broker may select not to have your property's information shared with websites/apps. You and your broker still manage access to the home (use option 2-C if tours/showings/open houses are not yet available when information must be submitted to Bright).



2-C: My home is ready for marketing, but will be ready for showings beginning on:

The property will be "Coming Soon" in Bright until ready for home tours/showings/open houses, and then "Active" once any of those begin. **If option 2-C is selected, select:**



Internet: Yes (Use Bright to share my home's information with the open market)



Internet: No (Use Bright to share my home's information with real estate professionals in Bright's MLS only)



2-D: I do not want my home on the open market: Restrict marketing only to my broker's network

Studies show that homes publicly marketed through Bright's MLS typically sell for significantly more than homes marked as "off MLS," "off market," "private" or "exclusive." And most homes that start with restricted marketing find a buyer only once marketed through the MLS to the open market. If you want to instruct your broker to restrict marketing, then you must sign Bright's separate **Limited Marketing/Office Exclusive form** and follow its policies.

Broker/Agent

Date

Client



Seller Client



Landlord Client

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